

Criminal Law, Investigation and Procedure Victoria
Investigation
Questioning
Questioning of person in custody
Last Review: 30/07/2023

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[Q.3000] Period allowed

By the combination of [s 464A\(2\)\(b\)](#) and (4) of the *Crimes Act 1958* a police officer (or other “investigating official”) may, for a reasonable time,¹ question a suspect taken into custody for an offence in order to determine the involvement, if any, of the person in that offence.

Police are permitted a reasonable time to conduct questioning and investigation “to determine the involvement (if any) of the person in that offence”² before they are required to release unconditionally, release on bail or bring the person in custody before a bail justice or Magistrates' Court.

What constitutes a “reasonable time” will differ from case to case, but if, before, during or after questioning, there is an unjustifiable (and significant) delay before taking a person before a bail justice or Magistrates' Court, there may be a failure to comply with this provision. The court may then be asked to exercise its discretion to exclude unfairly, improperly or illegally obtained evidence.³

The *Victorian Police Manual – Procedures and Guidelines* reiterates the requirements of [s 464A\(1\), \(2\) and \(4\)](#).⁴

It is a matter of common fairness that, pursuant to [s 464A\(2\)\(a\)](#), a suspect is informed of the “circumstances of the offence” for which he or she is in custody. Exact explanations of the elements of the crime are not required; nor will an interview be excluded if every detail is not put to

a suspect.⁵ The specific offence ultimately charged need not be nominated with specificity.⁶ However, the investigating official is required to inform the person of:⁷

[T]he central factual feature or features, expressed in general and abbreviated terms, of the offence for which the person is in custody. What is required is sufficient information to enable the person ... to understand what he is to be asked about ... and also to make an informed decision concerning ... the right of silence and the right to communicate with a friend, relative or lawyer.

Non-compliance with the provision will not necessarily result in the exclusion of the interview – that remains a matter of judicial discretion on the grounds of unfairness or illegality or impropriety.⁸

Definitions

[Q.3020] “investigating official”

Investigating official

means:

... a member of the police force or a person appointed by or under an Act (other than a member or person who is engaged in covert investigations under the orders of a superior) whose functions or duties include functions or duties in respect of the prevention or investigation of offences.⁹

The definition includes police officers, and extends to any official with the statutory authority to investigate Victorian offences.¹⁰ It does not include undercover police.¹¹ It includes Australian Federal Police and has extraterritorial effect.¹²

[Q.3040] “investigating official” – cases

Where an offence is committed in Victoria, and the interview is conducted upon a suspect in Western Australia, the Western Australian police officer is not an “investigating officer” for the purpose of [s 464H of the Crimes Act 1958](#).¹³ A member of the Australian Federal Police did not fall within the definition in this Act but that officer had the same powers and duties as an “investigating official” due to [s 9 of the Australian Federal Police Act 1979 \(Cth\)](#).¹⁴

Crown Casino employees were “investigating officials” and were therefore required to comply with the requirements of the *Crimes Act 1958*, s 464, and the *Evidence Act 2008*, Dictionary to that Act.¹⁵

A Drug Court case worker is not an “investigating official” and was under no common law or statutory obligation to caution a client who she had encouraged to make admissions to an offence, thereby relinquishing his privilege against self-incrimination and surrendering his right to silence. The admissions made to the Drug Court case worker were properly excluded as it would be unfair to permit the evidence of the admissions to be admitted.¹⁶

[Q.3060] “suspect”

Suspect

means¹⁷ a person of or above the age of 18 years who:

- (a) is suspected of having committed an offence; or
- (b) has been charged with an offence; or
- (c) has been summonsed to answer to a charge.

[Q.3080] “suspect” – cases

An “investigating official” must regard a citizen as a “suspect” before many of the provisions of s 464 of the *Crimes Act 1958* are triggered. The decision is a subjective assessment by the investigating officer. In the ebb and flow of preliminary inquiry, mere advertence by an investigating officer to the possibility of a person having committed an offence falls far short of the purview of s 464H(1)(a) and (b).¹⁸ The decision must not be based upon speculation “... but is concerned with a state of mind arrived at upon consideration of known facts out of which an apprehension that a person might possibly have committed an offence is created”.¹⁹

To attract s 464H, the offence for which the individual is suspected need not be the precise offence with which he or she is ultimately charged.²⁰

[Q.3100] “person in custody”

A person is “in custody” if under lawful arrest (by warrant or pursuant to statute) or if he or she is in the company of an investigating official and is being or about to be questioned in relation to an offence under investigation.²¹

Police officers, and other investigating officials, are not entitled, at common law, to detain people “for questioning”.²² However, s 464A:²³

... envisages a limited period for questioning – a reasonable time – during which a person may be held in custody for questioning or while an investigation is being carried out. This is a substantial modification of the common law which did not permit a person to be detained for the purpose of questioning. Section 464A recognises that the questioning or investigation may be suspended or delayed, but it plainly regards the questioning or investigation as an entire process which commences after the person is taken into custody in the extended sense involved in the definition in s 464(1).

Section 464I of the *Crimes Act 1958* states:

Nothing in sections 464 to 464H (except as provided by an order made under section 464B(5)) confers a power to detain against his or her will a person who is not under arrest.

Pursuant to s 464B, a person held in a prison or police gaol or otherwise detained, and who is reasonably suspected of having committed an offence other than the offence for which he or she is being held, may be questioned in relation to the fresh matter only after the police officer applies to the Magistrates' Court (or, in the case of persons under 18 years, the Children's Court).²⁴ The application must be in writing and comply with the other requirements of s 464B.²⁵ This provision applies to persons remanded in custody, to those serving a sentence of imprisonment in a police gaol, prison or youth justice centre, and to persons detained under the *Mental Health Act 1986*.

[Q.3120] “person in custody” – cases

A person is in custody if the sum of information in possession of the investigating official justified the arrest of the suspect – it is an objective test, which may be satisfied even if the investigating official had not formed the belief that there was sufficient information to arrest the suspect.²⁶ Furthermore, a person could be “in custody” if the investigating official had no power of arrest, provided the information possessed by that official was sufficient to have justified an arrest.²⁷

A person is not “in custody” under these provisions unless there is reasonable evidence to establish that a particular offence has been committed; thus a person is not in custody where he or she cannot be informed of “the circumstances of that offence” pursuant to s 464A(2)(a) of the *Crimes Act 1958*.²⁸

An investigating official may request the person's name and address before any “questioning” commences and before informing a person in custody of their right to silence.²⁹

A person who is the subject of a police set-up (where covert operations police organise a hoax “criminal gang”) which the person joins, the person is not arrested, and is not “in custody” for the purposes of [s 464](#).³⁰

[Q.3140] An offence

The “offence” for which a person in custody can be questioned may be either indictable or summary. The obligations of an investigating official pursuant to [ss 464A\(2\), \(3\), 464C\(1\), 464D\(1\), 464E\(1\) and 464F\(1\) of the *Crimes Act 1958*](#) apply to all offences, whether indictable or summary, whereas [s 464H](#) only applies to indictable matters.

The caution

[Q.3160] General

Every person detained in custody by a police officer (or other “investigating official”) must be cautioned before any questioning. That is, a suspect in custody must be informed that he or she does not have to say or do anything but that anything the person does say or do may be given in evidence. Historically, the caution was derived from the *Judges' Rules*³¹ which provided guidance to police officers as to the appropriate conduct when questioning a suspect. The requirement to caution is now enacted in [s 464A\(3\) of the *Crimes Act 1958*](#):

Before any questioning (other than a request for the person's name and address) or investigation under subsection (2) commences, an investigating official must inform the person in custody that he or she does not have to say or do anything but that anything the person does say or do may be given in evidence.

An investigating official may request the person's name and address before any “questioning” commences and before informing a person in custody of their right to silence.³²

When should a caution be given?³³ The obligation to caution would arise:³⁴

[W]hen the police have sufficient evidence in their possession to justify a charge, even if they have not decided to charge a suspect.

The *Victoria Police Manual – Procedures and Guidelines* details the current guidelines for police in the questioning of suspects, essentially reiterating the terms of [s 464A](#).³⁵ In addition, the Procedures and Guidelines require the repetition of rights to a suspect after an interview has been suspended and is re-commenced.³⁶

The caution must be given in, or translated into, a language in which the person is able to communicate with reasonable fluency.³⁷ If a person cannot hear adequately, the caution should be given in writing.³⁸

[Section 464G Crimes Act, 1958](#), requires that the caution (together with any response) must be recorded (by audio or audiovisual), if practicable.³⁹

[Q.3180] Effect of failure to caution

The failure to caution a suspect either at all, or at the proper time, does not necessarily render any subsequent admissions or confession inadmissible.⁴⁰

It is for the accused to prove the facts giving rise to an alleged breach of [s 464A\(3\) of the Crimes Act 1958](#).⁴¹

Where the police interrogator adopted an informal methodology of questioning described by the acronym, PEACE (preparation, engage, account, challenge or clarification and evaluation), the use of the PEACE method as an interrogation technique “has the potential to erode common law rights and statutory protections (such as those found in [ss 464 to 464J of the Crimes Act 1958](#))”.⁴²

In that case, the majority also expressed concerns regarding the PEACE method of questioning, and whether that approach should continue to be followed in this State.⁴³

However, the failure to caution may result in discretionary exclusion of the admission pursuant to either [s 90](#) or [ss 138 and 139 of the Evidence Act 2008](#).⁴⁴

The failure to caution by an investigating official is “deemed impropriety” pursuant to [s 139\(1\) or \(2\) of the Evidence Act 2008](#). That is, a statement made, or act done, during questioning is “obtained improperly” if a person is under arrest and the questioning was conducted by an investigating official who was empowered to arrest the person and, before starting the questioning, the investigating official did not caution the person.⁴⁵ Further a statement made, or act done, during questioning is also taken to be “obtained improperly” if the questioning was done by an investigating official who did not have the power to arrest a person, and the investigating official

had formed a belief there was sufficient evidence of an offence, and no caution was given before the statement was made.⁴⁶ Once “deemed impropriety” is established, the test for exclusion of the admission is that the evidence is not to be admitted unless the desirability of admitting the evidence outweighs the undesirability of admitting the evidence.⁴⁷ In applying that test, the court takes into account the factors in s 138(3) of the *Evidence Act 2008*.

Right to communicate

[Q.3200] Right to communicate with friend, relative or lawyer

After being cautioned and before any questioning of a person in custody commences, a police officer (or “investigating official”) is required to inform the person that he or she has the opportunity to communicate, or attempt to communicate, with a friend or relative to inform that person of his or her whereabouts, and with a legal practitioner. These rights arise from the operation of s 464C of the *Crimes Act 1958*.

What is required is sufficient information to enable the person to make an informed decision concerning the right to silence and the right to communicate with a friend, relative and lawyer.⁴⁸ The right to communicate with a friend, relative and lawyer is a right that immediately arises before any questioning commences; it is insufficient for a suspect merely to be asked whether he or she understands the right. The suspect must be asked whether or not he or she wishes to exercise that right immediately.⁴⁹ After leaving messages on the answering machines of legal advisers, s 464C had not been breached where the suspect then acquiesced in the commencement of an interview.⁵⁰

Where Australian Federal Police, together with Pakistani officials failed to defer questioning before a legal practitioner was present, a breach of the equivalent provisions of the *Crimes Act 1914 (Cth)* occurred with the effect that the confession ought to have been excluded in the exercise of discretion.⁵¹ The principle also has extraterritorial effect.⁵²

[Q.3220] Deferral of questioning until after communication with friend, relative or lawyer

Section 464C(1) requires an investigating official to defer the questioning for a reasonable time to enable the person to make or attempt to make communication with a friend, relative or lawyer. The obligation to defer questioning arises after a person in custody is informed of the circumstances of the offence.⁵³ Having informed the person of the circumstances of the offence, two obligations then arise before any questioning⁵⁴ commences: first, the caution must be given, and secondly, the person must be informed of the right to communicate with a friend, relative or lawyer.⁵⁵

If a suspect, having been informed of these rights, either makes no indication as to his or her wishes or indicates that he or she does not wish to communicate with a friend, relative or lawyer, the requirement to defer questioning does not arise. Where two phone calls were made to legal practitioners, a message was left, and there is thereafter acquiescence in the commencement of the interview, no breach of [s 464C](#) is committed.⁵⁶

The duty to defer questioning arises at the time when the suspect's wishes to communicate with a friend, relative or lawyer are made known to the investigating officer. That may be at a time prior to the investigating officer providing the suspect with information as to those rights.⁵⁷

[Q.3240] Effect of failure to accord right to communicate or defer questioning

[Section 464C](#) does not prescribe any consequences for a failure to comply with its provisions.⁵⁸ However, regard should be had to [s 464J\(d\)](#) which retains the discretion of the court to exclude illegally or improperly obtained evidence.⁵⁹ There is no general rule that a court will reject evidence illegally obtained.⁶⁰

The discretions to excluded illegally or improperly obtained evidence will be exercised pursuant to [s 138 of the Evidence Act 2008](#).⁶¹

The effect of the breach of [s 464C\(1\)](#) in *Pollard v The Queen* (1992) 176 CLR 177; 67 ALJR 193; 64 A Crim R 393; 110 ALR 385⁶² case was that the confessional statement should have been excluded from evidence in the exercise of the trial judge's discretion. The magnitude or significance of the police officer's breach of duty may, in itself, have justified exercise of the discretions. Clearly, at common law, the seriousness of the breach, whether it was inadvertent or “deliberate and reckless”, must be taken into account in the exercise of the discretion.⁶³

The gravity of the impropriety, and whether it was deliberate or reckless are two of the factors to be taken into account (listed in [s 138\(3\)](#)) in the exercise of discretion pursuant to [s 138 of the Evidence Act 2008](#). Where the police, at a field interview, did not tell a suspect (who lacked fluency in English and had limited knowledge of his rights as an Australian citizen) that he could, if he wished, attempt to communicate immediately with a friend, relative or legal practitioner, the field interview was excluded as the police had contravened [s 464C of the Crimes Act 1958](#). In that case, a later record of interview was regarded as a continuation of the field interview due to the relatively close connection between the two periods of questioning, the fact that the suspect was held in custody and incommunicado during that time and the fact that the interviewing police were the same for both periods of questioning. That later record of interview was also properly excluded in the exercise of discretion pursuant to [s 138 of the Evidence Act 2008](#).⁶⁴ Improperly or illegally

obtained evidence is not to be admitted unless the desirability of admitting the evidence outweighs the undesirability of admitting the evidence.⁶⁵

The failure to comply with s 464C of the *Crimes Act 1958* will ordinarily be unfair to the accused and call for the exclusion of evidence obtained after the breach.⁶⁶ If evidence on a voir dire takes the case out of the “ordinary”, and there is no unfairness in the admission of the evidence,⁶⁷ it may not be excluded. Where no reasonable grounds existed for the failure to defer questioning, the breach of the accused's procedural rights may create such a forensic disadvantage that it would be unfair to admit the interview.⁶⁸

[Q.3260] Police Procedures and Guidelines

The *Judges' Rules* of 1912–1918⁶⁹ originally constituted a set of guidelines produced by the judges of the Kings Bench Division to provide guidance to police when questioning suspects. They are substantially reproduced in the *Victoria Police Manual – Procedures and Guidelines*.⁷⁰ These procedures are intended only for the guidance⁷¹ of police and do not have the force of law, by contrast with s 464 of the *Crimes Act 1958*. To an extent, the provisions of s 464 have now effectively replaced the *Judges' Rules* with statutory rules. The Procedures and Guidelines are still arguably relevant in the guidelines they invoke for the proper approach to the questioning of certain categories of suspect. The stated objectives of the Procedures and Guidelines in relation to the conduct of interviews of suspects are to support the interpretation and application of rules and responsibilities.

In addition, the Procedures and Guidelines state that the object of these instructions is to ensure any admission or confession is obtained fairly:⁷²

Any person interviewed or providing a statement should be given appropriate support to ensure that there is fairness in process and their human rights are respected. These Procedures and Guidelines will provide the necessary information to enable members to meet this obligation when interviewing or obtaining a statement from persons who are: children, affected by a mental disorder, alcohol or drug affected, deaf and mute or non-English speaking.

Notably, the requirements of s 464 apply to all “investigating officials”, not only members of the police force. Any breach of Police Procedures and Guidelines is a factor to be taken into account in the exercise of a discretion to exclude a subsequent confession made to a police officer. Any breach of the *Judges' Rules* may also be a factor to be taken into account in the exercise of a discretion to exclude a confession made to an “investigating official” other than a police officer.

Confessions/admissions by conduct

[Q.3280] Re-enactments

Any re-enactment must be preceded by an appropriate caution.⁷³ In *R v Lowery (No 1)* [1972] VR 554, the trial judge, Smith J, said:⁷⁴

... where a person is in custody, he ought to be warned by a suitable form of caution before he is invited to make admissions. I think that if the invitation is to make admissions by conduct that is to be filmed, then the proper course is to warn him in relation to that form of admission and not merely in relation to saying things.

[Q.3300] Implied admissions

Admissions may be implied from conduct.⁷⁵ Flight from the scene of a crime,⁷⁶ failing to appear at a subsequent hearing, resisting arrest and lies⁷⁷ told to police or civilians are all capable of amounting to evidence of a consciousness of guilt. Before such evidence is admitted, it must be capable of amounting to evidence of a consciousness of guilt of the crime alleged, and no other crime. If the explanation for the conduct is such as to raise a consciousness of guilt of another crime⁷⁸ or of other wrongdoing, or is otherwise prejudicial, the conduct may be excluded – generally in those circumstances, the probative value of the evidence is outweighed by its prejudicial effect.

Generally, denials to police questions are not to be construed as admissions.⁷⁹ Interviews consisting of mere denials have no evidential value and may be excluded although they are regularly admitted by consent in fairness to the accused.

Footnotes

- 1 See *R v Heaney* [1992] 2 VR 531; (1992) 61 A Crim R 241 at 550–551 (VR); *R v Saxon* [1998] 1 VR 503; (1997) 92 A Crim R 188 at 514–552 (VR). In the circumstances of that case, a period of 14 hours in custody before interview was held not to be unreasonable. In the circumstances of *R v Frugtniet* [1999] 2 VR 297; (1999) 107 A Crim R 161; [1999] VSCA 58 at [47]–[50], 14 hours was held not to have exceeded a “reasonable time”. Where a defendant was held in

custody for two days after expressing a desire not to answer questions and then engaged in a re-enactment, that evidence was excluded due to a contravention of [s 464A\(1\)](#). It was held that there was a causal link between the illegal detention and the impugned evidence: *Director of Public Prosecutions (Vic) v Dalton (Ruling No 1)* [2019] VSC 226 at [50]. See also *Director of Public Prosecutions (Vic) v Hollis* (2019) 58 VR 695; [2019] VSCA 110 at [10]: “The wide variety of potentially relevant circumstances highlights the fact that the length of the period of detention, by itself, is likely to shed little light on the question of reasonableness.”

2 [Crimes Act 1958, s 464A\(2\)\(b\)](#).

3 “If the questioning of a person in custody were to continue beyond a reasonable time, that person not having been brought before a bail justice or the Magistrates’ Court, it would constitute questioning during a period of unlawful detention and the admissibility in evidence of any confession or admission made during that period would depend, not only upon compliance with the provisions of [s 464H](#), but also upon the application of the common law rules regarding voluntariness, fairness and overriding public policy in which the unlawful detention would be a highly relevant consideration”: *Pollard v The Queen* (1992) 176 CLR 177; 67 ALJR 193; 64 A Crim R 393; 110 ALR 385 at 190 (CLR), per Brennan, Dawson and Gaudron JJ. And see *Evidence Act 2008, s 138*.

4 *Victoria Police Manual – Procedures and Guidelines*, Interviews and Statements, 1 Before Interviewing a Suspect or accused; 2 Conducting an interview with a suspect or accused – recorded interviews; 3 Conducting an interview with a suspect or accused – records of interview; 4 Taking a statement after an interview for an indictable offence; 5 Taking a statement from a victim or witness; 6 Destruction of discs and tapes; 7 Statements by the informant.

5 [R v Vollmer](#) [1996] 1 VR 95 at 128–129.

6 The mode of penetration in a case of rape (ie whether penile or digital) need not be specified – see [R v Mathe](#) [2003] VSCA 165 at [39]. Also see *R v Hannah* (unreported, VSCA, 23 June 1998), p 3. In that case, the police informed the suspect that they wished to question him about the circumstances of a fire at his home, which was lit as his two children slept. He was ultimately charged (and convicted) of attempted murder of his two children.

7 [R v Lancaster](#) [1998] 4 VR 550; (1998) 100 A Crim R 589 at 557 (VR), per Batt JA. In [R v Lancaster](#) [1998] 4 VR 550; (1998) 100 A Crim R 589, the police informed him they wanted to question him about an act of sexual penetration but not rape. Also see [R v Mathe](#) [2003] VSCA 165 at [35]–[39].

8 [Crimes Act 1958, s 464J\(c\)](#) and (d). And see *Evidence Act 2008, ss 90 and 138*; also see [\[EA.138.40\]](#); [R v Lancaster](#) [1998] 4 VR 550; (1998) 100 A Crim R 589 at 557–558 (VR); *Pollard v The Queen* (1992) 176 CLR 177; 67 ALJR 193; 64

A Crim R 393; 110 ALR 385 at 196–197 (CLR); *R v Frugtniet* [1999] 2 VR 297; (1999) 107 A Crim R 161; [1999] VSCA 58 at [58].

Crimes Act 1958, s 464(2).

See [Q.5040]. Crown Casino employees were “investigating officials” and were therefore required to comply with the requirements of the *Crimes Act 1958*, s 464, and the *Evidence Act 2008*, Dictionary to that Act. See: *Director of Public Prosecutions (Vic) v Hou* (2020) 62 VR 1; [2020] VSCA 190 at [130].

R v Dewhirst (2001) 122 A Crim R 403; [2001] VSC 172 at [21].

R v Thomas (2006) 14 VR 475; 163 A Crim R 567; [2006] VSCA 165 at [72], [109].

R v Weston (unreported, Vic CCA, 5 August 1992) and see *R v Bartlett* (unreported, Vic CCA, 14 September 1994).

R v Frugtniet [1999] 2 VR 297; (1999) 107 A Crim R 161; [1999] VSCA 58 at [36]; *R v Thomas* (2006) 14 VR 475; 163 A Crim R 567; [2006] VSCA 165 at [72].

Director of Public Prosecutions (Vic) v Hou (2020) 62 VR 1; [2020] VSCA 190 at [130].

Director of Public Prosecutions (Vic) v Myles [2021] VSCA 324 at [33] – [37].

Crimes Act 1958, s 2.

R v Alexander [1994] 2 VR 249 at 255.

R v Heaney [1992] 2 VR 531; (1992) 61 A Crim R 241 at 548 (VR); *R v Alexander* [1994] 2 VR 249 at 256: “What is required is a positive apprehension.”. See *R v Laracy* (2007) 180 A Crim R 19; [2007] VSC 19 at [84]–[89]. See *Nabole v The Queen* (2014) 43 VR 542; 246 A Crim R 300; [2014] VSCA 297; *Maeda v Director of Public Prosecutions (Cth)* [2015] VSCA 367.

R v Cavkic (2005) 12 VR 136; 155 A Crim R 275; [2005] VSCA 182 at [247]–[248]; *R v Hazim* (1993) 69 A Crim R 371.

Crimes Act 1958, s 464(1).

R v Banner [1970] VR 240 at 249; *Williams v The Queen* (1986) 161 CLR 278; 60 ALJR 636; 28 A Crim R 1; 66 ALR 385 at 388 (ALR).

Pollard v The Queen (1992) 176 CLR 177; 67 ALJR 193; 64 A Crim R 393; 110 ALR 385 at 189 (CLR), per Brennan, Dawson and Gaudron JJ.

Crimes Act 1958, s 464B(1). See extended definition of “child” as defined in s 464B(10).

See [Q.4140].

McCormack v Silberman (unreported, VSC, Ashley J, 17 December 1993).

McCormack v Silberman (unreported, VSC, Ashley J, 17 December 1993).

R v Vollmer [1996] 1 VR 95.

Crimes Act 1958, s 464A(3); and see *Vyater v The Queen* (2020) 282 A Crim R 65; [2020] VSCA 32 at [20]–[26].

- 30 *Director of Public Prosecutions (Vic) v Ghiller* (2003) 151 A Crim R 148; [2003]
VSC 350 at 162 (Cummings J).
- 31 See [Q.3260].
- 32 *Crimes Act 1958*, s 464A(3); and see *Vyater v The Queen* (2020) 282 A Crim R
65; [2020] VSCA 32 at [20]–[26].
- 33 Rule 2 of the 1964 *Judges' Rules* states: “As soon as a police officer has
evidence which would afford reasonable grounds for suspecting that a person has
committed an offence, he shall caution that person or cause him to be cautioned
before putting to him any questions, or further questions, relating to that offence”,
cited in *Practice Note* [1964] 1 All ER 237; [1964] 1 WLR 152 at 238 (All ER).
- 34 *Van der Meer v The Queen* (1988) 62 ALJR 656; 35 A Crim R 232; 82 ALR 10 at
661 (ALJR); also *R v Trotter* (1992) 58 SASR 223; 60 A Crim R 1 at 238 (SASR).
- 35 *Victoria Police Manual – Procedures and Guidelines*, Interviews and Statements,
1 Before Interviewing a suspect or accused; 1.1 Legislative Requirements;
1.2 Exercising their rights under the caution – Access to communication; 1.3
Exercising their rights under the caution – Access to a legal practitioner.
- 36 *Victoria Police Manual – Procedures and Guidelines*, 2 Conducting an Interview
with a suspect or accused – Recorded interviews; 2.1 Legislation; 2.2 Procedure
for recording an interview of an indictable offence; 3 Conducting an interview
with a suspect or accused – Records of Interview – if an interview is
recommenced, the person in custody must again be informed of their rights.
- 37 *Evidence Act 2008*, s 139(3).
- 38 *Evidence Act 2008*, s 139(3).
- 39 *Willis v The Queen* (2016) 261 A Crim R 151; [2016] VSCA 176 at [10], [45]–
[49, [75]–[88], [114].
- 40 See P Gillies, *The law of criminal investigation* (The Law Book Company
Limited, 1982), p 125; see *R v Swaffield* (1998) 192 CLR 159; 72 ALJR 339;
96 A Crim R 96; 151 ALR 98 at [95], per Toohey J, Gaudron and Gummow JJ;
Azar v The Queen (1991) 56 A Crim R 414 (NSWCCA); *R v Daylight* (1989) 41
A Crim R 354 (QSC); *Dansie v Kelly; Ex parte Dansie* [1981] Qd R 1. Also see
discussion at [Q.3260] as to conforming with Police Operating Procedures.
- 41 *Willis v The Queen* (2016) 261 A Crim R 151; [2016] VSCA 176 at [110]–[111].
- 42 *Willis v The Queen* (2016) 261 A Crim R 151; [2016] VSCA 176 at [211] per
Priest JA, dissenting.
- 43 *Willis v The Queen* (2016) 261 A Crim R 151; [2016] VSCA 176 at [202] per
Weinberg and Beach JJA.
- 44 See discussion at [EA.84.20] – fairness discretion; and at
[EA.138.20]–[EA.138.100] – Improperly or illegally obtained evidence
discretion; also see S Odgers, *Uniform Evidence Law* (10th ed, Thomson Reuters,
2012) s 90 at [1.3.5760], s 138 at [1.3.14880], s 139 at [1.3.15340]. See *R v Kerr*

(*No 1*) [2015] VSC 64, in which evidence of admissions made during a video record of interview, and in a covertly recorded conversation with police, were admitted into evidence. See *Director of Public Prosecutions (Vic) v Hou* (2020) 62 VR 1; [2020] VSCA 190 at [147]–[148]; *Director of Public Prosecutions (Vic) v Myles* [2021] VSCA 324 at [35]–[37].

Evidence Act 2008, s 139(1); see discussion at [EA.138.20]–[EA.138.60].

Evidence Act 2008, s 139(2).

Evidence Act 2008, s 138(2).

R v Lancaster [1998] 4 VR 550; (1998) 100 A Crim R 589; *R v W* [2000] VSCA 28 at [17]–[33]; *Willis v The Queen* (2016) 261 A Crim R 151; [2016] VSCA 176 at [238] per Priest JAJ (dissenting).

R v Co Lan Tchiang (unreported, VSC, Cummins J, 24 June 1991), ruling at trial, p 263.

R v W [2000] VSCA 28 at [17]–[33].

R v Thomas (2006) 14 VR 475; 163 A Crim R 567; [2006] VSCA 165 at [104]–[115].

R v Thomas (2006) 14 VR 475; 163 A Crim R 567; [2006] VSCA 165 at [109].

Crimes Act 1958, s 464A(2).

Other than a request for the person's name and address: *Crimes Act 1958*, s 464A(3).

Pollard v The Queen (1992) 176 CLR 177; 67 ALJR 193; 64 A Crim R 393; 110 ALR 385. The relevant facts in *Pollard v The Queen* (1992) 176 CLR 177; 67 ALJR 193; 64 A Crim R 393; 110 ALR 385 were: Pollard was tried in relation to sexual offences, including aggravated rape. He was intercepted at about 6.30 am on his way to work three days after having sexual relations with the prosecutrix. He was given a “cursory warning” and taken by police car to the CIB office in Frankston for questioning. The prosecutrix's statement was there read to the accused. At about 7.30 am, the accused was questioned about the allegations and his response was noted. At about 10.30 am, the accused was taken by car to the St Kilda Road police complex, where he was interviewed on videotape. On videotape, he was, for the first time, cautioned and informed of his rights to communicate with a friend, relative or lawyer. He said he understood them, and the questioning immediately continued. As the obligation to give the information required by s 464C(1) arose before the commencement of the questioning, which occurred at Frankston, s 464C(1) had been breached. Also see *R v Su* (2003) 7 VR 13; 142 A Crim R 338; [2003] VSC 305 at [54]–[61]. As to the effect of the breach, see [Q.3240]; *R v Thomas* (2006) 14 VR 475; 163 A Crim R 567; [2006] VSCA 165 at [104]–[115].

R v W [2000] VSCA 28 at [17]–[33].

- 57 “I do not accept that it is only when the words of the [s 464A](#) warning or the words of the [s 464C](#) information are given that the said duty arises on the part of the investigating official. It is, in my opinion, when the person's wishes to communicate are made known to the investigating official.”: *R v Shaw* (1991) [57 A Crim R 425](#) at 438, per Murphy J (CCA).
- 58 Unlike *Crimes Act 1958*, [s 464H](#), where non-compliance renders the confession or admission inadmissible.
- 59 The rationale for the discretion to exclude unlawfully obtained evidence was identified in *R v Ireland* (1970) 126 CLR 321; [44 ALJR 263](#) at 334–335 (CLR), per Barwick CJ.
- 60 *Cleland v The Queen* (1982) 151 CLR 1; [57 ALJR 15](#); [43 ALR 619](#) at 9 (CLR), per Gibbs CJ. In *R v Heaney* [1992] 2 VR 531; (1992) 61 A Crim R 241, the Court of Criminal Appeal held that the contravention of *Crimes Act 1958*, [s 464C](#) did not automatically lead to the exclusion of the admissions obtained in breach of it; the discretion to exclude was, however, enlivened.
- 61 *Director of Public Prosecutions v MD* (2010) 29 VR 434; [205 A Crim R 349](#); [2010] VSCA 233: held that the personal characteristics of a defendant are relevant to the exercise of discretion pursuant to [s 138\(3\)\(d\)](#); see discussion at [EA.138.20]–[EA.138.40].
- 62 *Pollard v The Queen* (1992) 176 CLR 177; [67 ALJR 193](#); [64 A Crim R 393](#); [110 ALR 385](#) at 184 (CLR), per Mason CJ; at 235, per McHugh J; at 203–204, per Deane J.
- 63 *R v Percerep* [1993] 2 VR 109; (1993) 65 A Crim R 419 at 120 (VR). Where the accused was subsequently given information as to his rights, it was held that there was no “deliberate and reckless disregard” of the section. See *R v Ali* (2004) 9 VR 389; [2004] VSCA 58 at [32].
- 64 *Director of Public Prosecutions v MD* (2010) 29 VR 434; [205 A Crim R 349](#); [2010] VSCA 233 at [16]–[26]. And see *Director of Public Prosecutions (Vic) v Hou* (2020) 62 VR 1; [2020] VSCA 190 at [148]–[149].
- 65 *Evidence Act 2008*, [s 138\(1\)](#).
- 66 *Pollard v The Queen* (1992) 176 CLR 177; [67 ALJR 193](#); [64 A Crim R 393](#); [110 ALR 385](#) at 236 (CLR), per McHugh J. Despite non-compliance with *Crimes Act 1958*, [s 464C](#), it was held that no miscarriage of justice due to counsel's failure to object to admissions in a “field interview”. See *R v Ali* (2004) 9 VR 389; [2004] VSCA 58 at [27]–[37], per Batt JA and at [69], per O'Bryan AJA, with Smith AJA dissenting.
- 67 *R v Percerep* [1993] 2 VR 109; (1993) 65 A Crim R 419 at 120 (VR); *R v Frugtniet* [1999] 2 VR 297; (1999) 107 A Crim R 161; [1999] VSCA 58 [58]; *R v Crupi* (1996) 86 A Crim R 229.

- 68 *R v Su* (2003) 7 VR 13; 142 A Crim R 338; [2003] VSC 305 at [46]–[61], per Coldrey J.
- 69 The *Judges' Rules* are reproduced in *R v Lavery (No 2)* (1979) 20 SASR 430 at 467–468 and in *R v Jeffries* (1946) 47 SR (NSW) 284; 64 WN (NSW) 71 at 291–292 (SR (NSW)). They are also set out in P Gillies, *The law of criminal investigation* (The Law Book Company Limited, 1982), pp 121–122. Also see GL Teh, “An examination of the judges' rules in Australia” (1972) 46 ALJ 489.
- 70 See especially *Victoria Police Manual – Procedures and Guidelines: Operating Procedures*, Interviews and statements.
- 71 See *R v Lee* (1950) 82 CLR 133 at 142 and 154 (dealing with Standing Orders issued by the Chief Commissioner of Police in Victoria), *McDermott v The King* (1948) 76 CLR 501; 49 SR (NSW) 26; 66 WN (NSW) 4 at 514–515 (CLR), per Dixon J.
- 72 *Victoria Police Manual – Procedures and Guidelines* – Interviewing specific categories of persons, 1 General.
- 73 See *Li Shu-Ling v The Queen* [1989] AC 270; [1988] 3 WLR 671; [1988] 3 All ER 138 where a video recording, including a demonstration, was voluntarily made two days after an oral confession. The video recording was admissible.
- 74 *R v Lowery (No 1)* [1972] VR 554 at 556. In that case, the evidence of a re-enactment was admitted (and approved on appeal in *R v Lowery (No 3)* [1972] VR 939 at 948–949, 952). A re-enactment was excluded in *Director of Public Prosecutions (Vic) v Dalton (Ruling No 1)* [2019] VSC 226.
- 75 *R v Ciantar* (2006) 16 VR 26; 167 A Crim R 504; 46 MVR 461; [2006] VSCA 263 at [72]: “So, if an innocent explanation of post-offence conduct is so inherently likely that a jury could not properly regard the conduct as evidence of guilt, or if the post-offence conduct is intractably neutral, the judge should refuse to leave the conduct to the jury as evidence capable of demonstrating consciousness of guilt. But where the judge is satisfied that the post-offence conduct, when taken in conjunction with the circumstances and events so identified is capable of demonstrating such a consciousness of guilt, the post offence conduct should be left to the jury to determine whether it has that effect. Similarly, where evidence of consciousness of guilt, which although by itself equally consistent with consciousness of guilt of an included offence or another count on the presentment or another offence disclosed by the evidence, is capable in conjunction with other evidence of sustaining an inference of consciousness of guilt of the charged offence, it must be left to the jury to determine whether it demonstrates consciousness of guilt of the charged offence.” And see S Odgers, *Uniform Evidence Law* (10th ed, Thomson Reuters, 2012) at [1.3.5240].
- 76 *R v Gay* [1976] VR 577 at 586; *R v Adamson* (unreported, Vic CCA, 19 April 1994), *R v Nguyen* (1992) 60 A Crim R 196 at 199 (CCA); *R v Dickson* [1983]

- 1 VR 227 at 236; *R v Kehagias* [1985] VR 107; (1984) 13 A Crim R 82 at 109, 121 (VR); *R v Melrose* [1989] 1 Qd R 572; (1987) 30 A Crim R 332 (CCA); *R v El Adl* [1993] 2 Qd R 195; *R v Shaw* (1995) 78 A Crim R 150 (QCCA); *R v Power* (1996) 87 A Crim R 407 (SACCA).
- 77 *Edwards v The Queen* (1993) 178 CLR 193; 68 ALJR 40; 68 A Crim R 349; 117 ALR 600; *R v Renzella* [1997] 2 VR 88; (1996) 88 A Crim R 65 at 68–69 (VSCA); *Zoneff v The Queen* (2000) 200 CLR 234; 74 ALJR 895; 112 A Crim R 114; 172 ALR 1; [2000] HCA 28; *R v Nguyen* (2001) 118 A Crim R 479; [2001] VSCA 1.
- 78 *R v Hartwick* (unreported, VSCA, 20 December 1995).
- 79 *Barca v The Queen* (1975) 133 CLR 82; 50 ALJR 108; 7 ALR 78; *Straker v The Queen* (1977) 51 ALJR 690; 15 ALR 103.